

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**15. 9:00 AM CASE NUMBER: L26-00601**  
**CASE NAME: CAPITAL ONE, N.A. VS. WILLIAM L SABA**

**FILED BY:**

**\*TENTATIVE RULING:\***

Counsel filed a Motion to be Relieved.

There is no evidence of service on the Defendant.

No declaration was provided.

**Disposition**

Counsel for Defendant to appear on 7/7/26, 9am (zoom is permitted), to provide proof of service, as well as to provide reasons for withdrawal in camera.

**16. 9:00 AM CASE NUMBER: L26-04380**  
**CASE NAME: PETITION OF: JACK WAKILEH**  
**PET. FOR RELASE OF PROPERTY. MECHANIC'S LIEN**

**FILED BY:**

**\*TENTATIVE RULING:\***

Petitioner filed a Petition for the Release of a Mechanic's Lien, along with a Declaration, on 5/7/26. Both documents were personally served on the Respondent.

The Petition is unopposed.

Petitioner seeks the release of the Mechanic's Lien on the property at 3784 Mosswood Dr., in Lafayette, as well as attorneys' fees in the amount of \$5,812.

**Background**

The Petition alleges that Respondent filed a Mechanic's Lien on the property for construction work, and that the Lien was recorded on 12/18/25. Petitioner further alleges that Respondent never filed an action on the lien after the recording. The deadline for filing an action was 3/18/26.

Petitioner sent several letters to Respondent in an attempt to resolve the matter, but also to notify Respondent of Petitioner's intent to file the Petition if Respondent failed to remove the lien. The latter notification occurred on 3/20/26.

There was no resolution, and the lien remained.